Job # 1234
Subcontract # SC-001

STANDARD
SUBCONTRACT AGREEMENT
FOR
Awesome Office Building

THIS AGREEMENT, made as of this 03/15/2023, by and between Fantastic Floors, LLC, hereinafter called "Subcontractor."

TEL#: 979-555-9999
TAX ID#: 12-3456789
CONTACT: Sammy Somebody

AND

General Construction, Inc.
1234 Anywhere Lane
College Station, TX 77840

hereafter called "Contractor" on a project for Awesome Owner, LP, hereinafter called “Owner”.

For the considerations hereinafter recited, Subcontractor covenants and agrees with the Contractor as follows:

FIRST: Subcontractor will furnish all materials, supervision, tools, supplies, labor and equipment necessary to fully construct and perform in a good and workmanlike manner, the following described work (the "Subcontractor's Work") upon and within the property and structures and in accordance with the Subcontract documents described as follows:

(a) WORK DESCRIPTION: Supply and install of all flooring materials, including but not limited to: ceramic tile, luxury vinyl tile, carpeting, and resilient base.

(b) The following exhibits are attached herewith and are a part of this agreement:

Exhibit A: Scope of Work ☑
Exhibit B: Lien Releases ☑
Exhibit C: Project Schedule ☐
Exhibit D: Plans and Specifications ☑
Exhibit E: Safety Requirements and Procedures ☑
Exhibit F: Sub-subcontractors and Vendors ☐
Exhibit G: Warranty ☑

The foregoing Exhibits, together with the Subcontract Agreement and the other documents described herein, are hereafter referred to as the "Subcontract Documents."

(c) All of that property **located at 789 Some Street, Bryan, TX 77801**

(d) THE EQUAL OPPORTUNITY CLAUSE, NON-DISCRIMINATION AND WAGE CLAUSES, if any, and Executive Orders relating thereto as referred to in the General Conditions or the Supplementary General Conditions of the Contractor's Agreement with Owner are herewith made part of this Subcontract. Subcontractor specifically agrees to abide by and comply with the terms and intent of said clauses and provisions. Violation thereof shall be good cause for termination of this agreement.

(e) The Subcontractor agrees to be bound to the Contractor by the terms of the Subcontract Documents and to assume to the Contractor all of the obligations and responsibilities for the Subcontractor’s work that the Contractor, by the contract documents, assumes to the Owner. A copy of the Owner – Contractor contract is available for review by subcontractor at Contractor office during normal business hours.

(f) The Subcontract Documents are intended to complement one another, and shall be construed to give force and effect to all provisions thereof. To the extent of any conflict between the provisions of this Subcontract Agreement and the provisions of the remaining Subcontract Documents, the latter shall govern.

SECOND: The Subcontractor shall begin the Subcontractor's Work within three (3) days after being notified in writing by Contractor that the applicable structure or structures are enough advanced or in such condition to allow the beginning or continuation of the Subcontractor's Work, and will carry forward and complete said work as rapidly as Contractor may require or judge that the progress of the structure will permit, unless detained by other subcontractors, or delayed due to unanticipated or unanticipatable adverse weather, acts of God or strikes or walkouts beyond the control of Subcontractor; in which event the Subcontractor will promptly notify the Contractor in writing, who (if satisfied that said delay is so caused and justified) will allow additional time sufficient in the Contractor's sole discretion and judgment to make up the time so lost and only to extend allowed by Owner. Time is of the essence of this Subcontract, and of any portion hereunder where a particular time or schedule has been established.

THIRD: (a) The Subcontractor is aware that the Contractor must have its contract with Owner performed in accordance with the project schedule prepared by the project superintendent. The Subcontractor agrees to perform the Subcontractor's Work in accordance with direction from the Contractor. Field Representative and Progress Schedule attached herewith entitled Exhibit "C" and made a part of this Subcontract, and to that end the Subcontractor will perform all work as required by the progress of the job and the instructions of the Contractor including overtime and extra shifts, if necessary, to maintain schedule at no additional cost.

(b) Review and approval of shop drawings at private meetings and/or consultations with the Architect or Contractor for interpretation of plans or prerequisites for continuation of work shall be the obligation of Subcontractor and shall in no way delay the work required hereunder or the work of others.

(c) When extension of time has been granted Contractor by Architect or Owner, the same extension will be granted said Subcontractor. Contractor shall only be required to extend time to extent granted by Owner.

FOURTH: (a) The Subcontractor will furnish all materials, supplies and equipment, including all necessary scaffolding and other tools necessary and incidental thereto prosecute the Subcontractor's work with due diligence, without delay, and will not in any manner, by delay or otherwise, interfere with the work of the Contractor, or other subcontractors, and should the said Contractor conclude that the Subcontractor is delaying or improperly performing said work, the Contractor may so notify said Subcontractor in writing, who shall, within 24 hours thereafter, furnish whatever materials are required, employ additional workers, or do such other things as required by the Contractor to bring the job back to schedule. Should the Subcontractor fail or refuse to comply with said demand, Contractor shall have the right to declare Subcontractor in default or to terminate Subcontractor's rights hereunder as to all or any of the balance of work to be performed and in either event to furnish materials and employ additional workers and charge the expense thereof against the Subcontractor and deduct same from this Subcontract, and should the amount or balance due on the Subcontract be insufficient therefor, to collect said deficiency by legal process
.

(b) The Contractor shall have the right to terminate this Subcontract at any time for the Contractor's convenience and without cause, upon giving the Subcontractor three (3) days' notice in writing. In the event of termination in accordance with this paragraph (b), the Contractor shall pay the Subcontractor, pursuant to the terms of the THIRTEENTH clause, all amounts to which the Subcontractor may be entitled on account of the Subcontract Work performed.

FIFTH: Should Subcontractor fail to start, continue or complete the work as hereinbefore provided and should the Contractor suffer or permit the Subcontractor to expend more time than required under this Subcontract, in that event the Subcontractor hereby covenants and agrees to indemnify and save harmless the Contractor from any loss or damages which it may sustain or be compelled to make good to the Owner of the Project or to others, under or by virtue of the contract with the Owner, or others, for or on account of delay in the completion thereof, insofar as said delay was caused by the Subcontractor.

SIXTH: The Subcontractor shall, at its cost and expense, haul, unload, handle, hoist, erect and protect the materials and work covered, under this Subcontract, shall broom-clean and remove from the site all rubbish and/or debris accumulated as a result of the performance hereof and shall provide sufficient, safe proper facilities at all times for the inspection of the work by the Architect, the Contractor or their authorized representatives. Subcontractor shall, at once, at its sole cost and expense, remove all materials and take down and rebuild all portions of the Subcontractor's Work condemned or rejected by the Architect or Contractor, and other work damaged or destroyed thereby, upon receiving notice in writing of such condemnation or rejection.

SEVENTH: (a) The Subcontractor shall not initially or subsequently employ any workmen whose employment on the buildings or improvements may be objected to initially or subsequently by the Contractor, the Architect, or the Owner. The Subcontractor shall furnish a workforce that will work in harmony with all other subcontractors on the project and who will comply with all rules established for work at the work site including but not limited to rules regarding reserved gate site access and site visitation. The Subcontractor shall not suffer, support or take any action to picket, strike, handbill, engage in sympathy or unfair labor practice strikes, any work stoppages or otherwise interfere with the work or the business of the Contractor or any of its subcontractors. The Subcontractor shall not suffer its employees to honor or recognize any picket line by any union against the Contractor. The Subcontractor agrees not to participate in or permit any cessation of work on the Project which is a result of any labor dispute, regardless of whether said labor dispute involves the Contractor, the Subcontractor or any other employer on or supplier to the project.

(b) The Subcontractor shall abide by all relevant state and federal laws and local ordinances and shall, within forty-eight (48) hours of receipt of a request by the Contractor, provide the Contractor with proof of compliance with such laws and ordinances, including but not limited to, proof that all employees in the Subcontractor's employ, or in the employ of a sub-Subcontractor, have submitted to their employer I-9s demonstrating they are eligible to work lawfully in the United States and are covered by current Workers' Compensation insurance policies.

(c) The Subcontractor shall properly classify all workers on the Project as employees and not as Independent Contractors and shall treat them accordingly for purposes of Workers' Compensation insurance coverage, employee tax withholdings, employer payroll taxes and wage and hour laws and all Subcontractors shall pay all employees on the Project by check, making all withholdings and payments required by state and federal law and immediately provide a record of such payments and withholdings to the Contractor on request.

(d) In the event any labor dispute or difficulty is created by or results from the operations of the Subcontractor in connection with the Work, and causes or results in a delay, interference or stoppage of any portion of the Work, or any portion of the work of Contractor or any other subcontractor, and such delay or interruption continues in the aggregate for two (2) or more business days, or in the event of Subcontractor's failure to comply with other provisions of sub-paragraphs (a), (b) and (c) hereof, and notwithstanding the provisions of Clause FOURTH hereof, the Contractor may hold Subcontractor in default or terminate this Subcontract at the end of said two (2) business days or at any time thereafter upon giving notice to the Subcontractor thereof. The Contractor shall furthermore have all of the rights and remedies provided in this Subcontract or at law. The Subcontractor expressly agrees not to participate in or accede to any stoppage in the Work which may result from any labor dispute of difficulty.

EIGHTH: Freight charges on all shipments to the project must be prepaid. No extra work or changes under this Subcontract will be recognized or paid for unless agreed to in writing before the Subcontractor’s Work is started. The Subcontractor must submit a written request for any such change in the time and manner provided for in the Subcontract Documents, and shall specify in detail the extra work or changes desired, the price to be paid or the amount to be deducted, should said changes decrease the amount to be paid, which shall be agreed upon prior to starting work on the change. Any additional or changed work and materials furnished by the Subcontractor prior to obtaining such approval will be at its own expense. Any disputes as to the value of the extra work or changes shall be determined by the Architect whose decision shall be final and binding upon the parties hereto. Subcontractor is always responsible for taking such measurements as will insure the proper matching and fitting of the Subcontractor’s work.

NINTH: (a) THE SUBCONTRACTOR HEREBY ASSUMES RESPONSIBILITY AND LIABILITY FOR ANY AND ALL DAMAGES OR INJURY OF ANY KIND OR NATURE WHATEVER, INCLUDING DEATH RESULTING THEREFROM AND TO ALL PROPERTY CAUSED BY, RESULTING FROM, ARISING OUT OF OR OCCURRING, DIRECTLY OR INDIRECTLY, IN CONNECTION WITH SUBCONTRACTOR’S PRESENCE UPON ITS PROJECT OR THE EXECUTION OF THE WORK BY THE SUBCONTRACTOR, ITS SUBCONTRACTORS OR AGENTS. IF ANY CLAIMS FOR SUCH DAMAGE OR INJURY BE MADE OR ASSERTED, INCLUDING CLAIMS BASED UPON THE PARTIAL NEGLIGENCE OF CONTRACTOR OR THE OWNER, THE SUBCONTRACTOR AGREES TO DEFEND, INDEMNIFY AND SAVE HARMLESS CONTRACTOR FROM ANY AND ALL SUCH CLAIMS, AND FURTHER FROM ANY AND ALL LOSS, COSTS, EXPENSE, LIABILITY, DAMAGE OR INJURY, INCLUDING LEGAL FEES AND DISBURSEMENTS, THAT CONTRACTOR. AND/OR THE OWNER MAY SUSTAIN, SUFFER OR INCUR AS A RESULT THEREOF. FURTHER, THE SUBCONTRACTOR AGREES TO AND DOES HEREBY ASSUME THE DEFENSE OF ANY ACTION AT LAW OR IN EQUITY WHICH MAY BE BROUGHT AGAINST CONTRACTOR OR THE OWNER ARISING BY REASON OF ANY SUCH CLAIMS, SUBJECT TO APPROVAL OF COUNSEL BY CONTRACTOR. IN THE EVENT OF ANY CLAIM(S), LOSS, EXPENSE, LIABILITY, DAMAGE, OR INJURY ARISING OUT OF THIS SUBCONTRACT, CONTRACTOR SHALL HAVE THE RIGHT TO WITHHOLD FROM ANY PAYMENTS DUE OR TO BECOME DUE TO THE SUBCONTRACTOR AN AMOUNT SUFFICIENT, IN ITS SOLE DISCRETION, TO PROTECT AND INDEMNIFY IT FROM ANY AND ALL SUCH CLAIMS, LOSS, COSTS, EXPENSE LIABILITY, DAMAGE OR INJURY, BUT ONLY IF SUBCONTRACTOR’S CARRIER HAS DENIED THE CLAIM.

(b) THE SUBCONTRACTOR SHALL PROTECT, INDEMNIFY, DEFEND AND SAVE HARMLESS CONTRACTOR FROM AND AGAINST ALL DAMAGES AND ALL COSTS AND EXPENSES, INCLUDING, BUT NOT LIMITED TO, ATTORNEYS' FEES, ARISING OUT OF ANY INFRINGEMENT OR CLAIM OF INFRINGEMENT ON ANY PATENT OR LICENSE IN THE USE OF ANY ARTICLES OR EQUIPMENT FURNISHED OR REQUIRED TO BE FURNISHED BY THE SUBCONTRACTOR UNDER THIS SUBCONTRACT.

(c) Contractor shall not be responsible for loss or damage to the Subcontractor's Work until after final acceptance of said work by the Architect. Contractor shall not be responsible for loss or damage to materials, tools or appliances of the Subcontractor used or to be used in construction, however caused.

TENTH: The Subcontractor shall, prior to commencement of work, purchase and maintain the following forms of insurance:

1. Worker's Compensation and Employers Liability Insurance as required by the state in which this work is performed.

2. Automobile Liability Insurance including coverage for owned, non-owned, and hired motor vehicles.

3. Commercial General Liability Insurance, including, but not limited to, premises and operations, Products and Completed Operations, Personal Injury and Contractual Liability, and coverage for commercial construction. Coverage shall be written on ISO Occurrence form CG 00 01 1093 or a substitute form providing equivalent coverage. Coverage to be provided on an occurrence basis.

4. Umbrella liability providing additional limits of insurance in excess of the underlying Employers Liability, Commercial General Liability and Automobile Liability policies.

5. If it is applicable to the work under the contract, provide "Professional Liability" insurance (i.e. Architects, Engineers, Surveyors) Errors and Omissions coverage.

Such insurance shall be written for not less than the following limits:

A. Worker Compensation

B. Employers Liability:
$ 1,000,000 each accident
$ 1,000,000 Employee-Disease
$ 1,000,000 Policy Limit-Disease

C. Commercial General Liability
$2,000,000 General Aggregate
$2,000,000 Products-Completed Operations Aggregate
$1,000,000 Personal & Advertising Injury
$1,000,000 Each Occurrence
$ 50,000 Fire Damage
$ 5,000 Medical Expense

1. Completed operations and contractual liability coverage included in the above policy shall continue in effect for three (3) years following final acceptance of the project by the Owner.

2. **Contractor** and the Owner and all other parties required of the General Contractor shall be named as "Additional Insured" under all liability Insurance policies which shall include a severability of interests' clause. Such additional insured status shall be effected using ISO Additional Insured Endorsement CG 21 10 11 85, or CG 2010 (10/93) and CG 20 37, or CG 2033 and CG 2037 or their equivalent. Each such liability policy shall be endorsed to provide a waiver of any and all of each insurer's rights of subrogation against the contractor, owner, and their corporate affiliates, officers, employees and agents, and Subcontractor hereby waives all rights of subrogation pertaining thereto.

3. The C.G.L. insurance shall be available on a "Per Project basis" and "Per Occurance."

D. Automobile Liability

Any Auto, Owned, Non-owned and Hired Bodily Injury and Property Damage

1. Split Limits:
$ 500,000 each Person Bodily Injury
$1,000,000 each Accident Bodily Injury

$ 500,000 each Accident Property Damage
OR

2. Combined Single Limit: $1,000,000

E. Umbrella (Excess) Liability $5,000,000 each Occurrence
$5,000,000 Aggregate

F. Professional Liability: $2,000,000 Combined Single Limit

Certificates of insurance evidencing insurance coverage shall state that no cancellation can be effective, nor shall the policy be allowed to expire, without thirty (30) days' written notice to Contractor.

Insurance coverage provided by the subcontractor, consultant or supplier to Contractor shall be, and shall be endorsed to confirm that it is primary insurance and non-contributing and shall not be reduced by the amount of any other insurance maintained by the Project Owner or Contractor insuring the same risks. This coverage shall be as broad for the additional insured parties as for the named insured subcontractor.

In the event any work under this Subcontract is performed by a sub-subcontractor, the Subcontractor shall require all of its sub-subcontractors to procure and maintain similar coverage as required by this Subcontract in an amount equal to the requirements of the Subcontract.

Upon signing of this Subcontract, the Subcontractor shall submit Certificates of Insurance in duplicate evidencing all of the above coverage. Attached to each certificate of insurance shall be a copy of the additional insured endorsement that is part of the Subcontractor's Commercial General Liability Policy. The Subcontractor hereby acknowledges and agrees that Contractor is entitled to rely upon all representations provided in the Certificates of Insurance. The failure of the Subcontractor to provide and maintain during all relevant periods the insurance required by this Subcontract shall constitute a material breach hereunder, for which the Contractor may exercise its remedies as provided in this Subcontract.

ELEVENTH: Neither this Subcontract nor any rights hereunder shall be assigned by the Subcontractor without the prior written consent of Contractor. Any attempt to assign the Subcontract or any rights hereunder shall, at the option of the Contractor, operate as an instant cause for termination of this Subcontract for default, and Subcontractor's rights hereunder and the rights of the parties shall be determined in the same manner as though the Subcontractor had at the time of such attempted assignment failed and refused to continue to perform the Subcontract.

TWELFTH: If contractually required, the Subcontractor agrees to provide the Contractor, within ten (10) days from the date of this Subcontract Agreement with **Payment and Performance Bonds, each** in the penal sum of $10,000,000.00 conditioned for the faithful performance of this contract in all its particulars, duly executed by a surety company authorized to conduct business as a surety on the state where the project is located and acceptable to the Contractor, and in form and manner acceptable to the Contractor. In lieu thereof, the Subcontractor will provide other security acceptable to Contractor and, if the Subcontractor fails to do so, the Contractor may terminate this Agreement without liability or obligation.

Bond: ☐ Not Required

THIRTEENTH: Contractor agrees to pay the Subcontractor the total sum of $613,000.00 for the Subcontractor's Work herein described as follows:

(a) In monthly payments equal to 100% of labor performed and materials in place based on percentage of completion of work hereunder as estimated and approved by the Architect and Owner. Billings shall be received by the 25th of the month for payment, and shall be presented on AIA Document No. G702 with a Schedule of Values that must be approved at the sole discretion of the of the Contractor before monthly pay application is submitted.

(b) Final payment, within thirty (30) days after the final retention payment is received by Contractor from Owner provided the Subcontractor has executed and delivered to Contractor a General Release, in form satisfactory to Contractor and has furnished evidence satisfactory to Contractor that the Subcontractor's obligations to its sub-subcontractors, vendors and suppliers have been fully discharged and that the premises are free from all liens or other claims chargeable to the premises or the Subcontractor as a result of this Subcontract.

(c) No payment made on account of the Subcontractors Work shall be construed as an acceptance or approval thereof, nor shall entrance and use by or on behalf of Owner constitute acceptance of all or any part of the Subcontractors Work hereunder.

(d) It is expressly understood and agreed that receipt of payment for the Subcontractor's Work by the Contractor from the Owner shall be an express condition precedent to the Contractor's obligation to make payments to the Subcontractor pursuant to the Subcontract.

FOURTEENTH:

(a) The Subcontractor hereby warrants that all Subcontract work will be done in a good and workmanlike manner, and that all material and equipment will be new unless otherwise specified, and free from defects not inherent in the quality specified.

(b) Notwithstanding payments made hereunder, Subcontractor covenants and agrees to and with Contractor to remedy any and all defects in Subcontractor's work or materials appearing and made known to Subcontractor within one (1) year following completion of the project.

FIFTEENTH: This Subcontract Agreement represents the entire agreement of the parties, and all representations, negotiations and agreements prior to the date of the Agreement are merged herein. The parties acknowledge that all provisions of this Subcontract Agreement have been read and fully understood. This Subcontract shall be governed by and interpreted in accordance with Texas law.

SIXTEENTH: **Compliance with Law and Safety**

(a) All work, labor, services and materials to be furnished by Subcontractor must strictly comply with all applicable federal, state, and local laws, rules, regulations, statutes, ordinances, and directives (hereinafter "Laws") now in force or hereafter in effect. All work, labor, services, or materials necessary to comply with said Laws shall be furnished by Subcontractor as part of this Subcontract without any additional compensation. To the fullest extent permitted by law, Subcontractor agrees to indemnify, defend and save Owner and Contractor harmless from and against any and all claims, loss, expense, fines or penalties including, without limitation, any such claims, loss and the like arising out of or based upon the Occupational Safety and Health Act, as amended, caused directly or indirectly by its failure to fully comply herewith.

(b) Subcontractor is specifically required to comply fully with all environmental and Hazardous Substance Laws and any applicable State Right-to-Know law. Before using on the Site any substance or material referred to in such laws, Subcontractor shall furnish **Contractor** with a list of such substances and a copy of the Material Safety Data Sheet for any substance listed in any applicable Right-to-Know substance list.

(c) Subcontractor agrees that the prevention of accidents to workers engaged in the Work under the Subcontractor is solely its responsibility. Subcontractor specifically agrees to take appropriate precautions to assure the safety of all persons, including but not limited to, its own employees, materialmen, and lower tier subcontractors, whose safety might otherwise be jeopardized by any and all peculiar, unreasonable risks of physical harm, or by any other risks of harm, relating to or arising out of the Work. Subcontractor shall comply with Exhibit E, Subcontractor's Safety Program, all applicable safety laws and any and all safety standards established during the progress of the work by **Contractor**. Subcontractor shall establish and implement a Safety Program for its Work. If requested, Subcontractor shall submit its Safety Program for review by **Contractor**. Any review of this Safety Program by **Contractor** shall not be deemed to release Subcontractor or in any way diminish Subcontractor's liability, by way of indemnity or otherwise, as assumed by it under this Subcontract.

(d) Subcontractor shall immediately notify **Contractor** of all accidents or injuries which may occur to persons and property and shall provide **Contractor** with a copy of all accident or injury reports on appropriate forms. All reports shall be signed by Subcontractor or its representative and submitted within forty-eight (48) hours of occurrence. Subcontractor shall provide project tabulations of injuries and man-hours expended.

(e) The subcontractor is solely responsible for the safety of its employees and sub-subcontractors when performing work related to, or incidental to, this contract. If an unsafe condition is noted and brought to the Subcontractor’s attention verbally or in writing, the Subcontractor shall stop any part of the Work which is unsafe until corrective measures have been taken. Subcontractor shall be responsible for all costs associated with correcting said unsafe condition and all job delays resulting from same.

SEVENTEENTH: (a) The Subcontractor is responsible for and shall promptly pay when due, and properly file all necessary forms, bonds and other documentation in connection with, all Sales Taxes, Use Taxes, Excise Taxes, Old Age Benefit and Unemployment Compensation Taxes upon the materials and labor furnished under this contract, as required by law. Prior to performing any work hereunder, any out-of-state Subcontractor shall provide evidence to Contractor of the filing of all necessary bonds with the **Texas Attorney General**. The Subcontractor shall indemnify, defend, exonerate and

hold harmless the Contractor from all loss, liability, damage, and expense arising out of the breach of Subcontractor obligations hereunder.

(b) The Subcontractor shall pay for all permits and fees charged by governmental agencies in connection with the Subcontract Work.

EIGHTEENTH: Written notice shall be duly served if delivered in person to an authorized representative of the person or entity for whom it was intended, or if delivered at or sent by registered or certified mail or by telefax to the address of such person or entity set forth in the Agreement. Any party to the Agreement shall have the right to change its address for receipt of written notice under this Agreement by duly serving written notice on the other party stating its new address. Notice shall be effective only if and when received by such authorized representative or at such address, except for notice sent by registered or certified mail deposited in the United States mail in a depository within the State of Texas which shall be effective at the end of the third business day after the date postmarked on the envelope containing such notice, if not sooner received by such authorized representative or at such address.

NINETEENTH: Claims and disputes between Contractor and Subcontractor arising out of or in connection with the Subcontract or the Work shall, at the sole election and discretion of the Contractor or Subcontractor, be resolved by mediation prior to arbitration, subject to the provisions relating to disputes with other parties. The arbitration proceedings shall be conducted pursuant to the Construction Industry Arbitration Rules issued by the American Arbitration Association then in effect. In the event Contractor is involved in a separate arbitration, litigation, mediation or other legal proceeding in which any aspect of the Subcontractor's Work or entitlement to payment is at issue, or questions of law or fact common to the Subcontractor's performance under the Subcontract are involved, or if complete relief cannot be afforded in such proceeding without the Subcontractor's participation therein, Subcontractor hereby consents, upon written demand by Contractor, to its consolidation or joinder in that proceeding, to the applicability of any rules or procedures applicable to such proceeding, and hereby waives any objections to the location or forum in which the proceeding is pending. In the event Subcontractor has initiated arbitration or litigation against Contractor at the time Contractor's demand for consolidation or joinder is received, and that proceeding cannot be consolidated with the proceeding in which the Contractor is involved, Subcontractor agrees to dismiss or, in the event dismissal would prejudice Subcontractor's rights, stay such arbitration or litigation.

The Contractor and the Subcontractor for themselves, their successors, executors, administrators and assigns, hereby agree to the full performance of the covenants of this Agreement.

IN WITNESS THEREOF, they have executed this Agreement the day and year written above.

Fantastic Floors, LLC

BY: _____ DATE: _____

General Construction, Inc.

BY: _____ DATE: _____

Pamela President

President

EXHIBIT A
Scope of Work

I. INTENT

Subcontractor is to furnish labor, material and equipment necessary to complete work at the subject project, acknowledging inclusions and exclusions in accordance with the following to include fully engineered design documents and drawings herein included in Exhibit D.

(a) The Contractor recognizes the particular expertise of the Subcontractor and is relying on his expertise to fully complete the work and systems specified on a turnkey basis in all respects regardless of errors or omissions in the plans and specifications.

(b) Subcontractor shall perform all work in accordance with applicable codes and shall comply with the regulations of local, federal, and state agencies having jurisdiction. This includes completed work and specifically includes compliance with Agency (OSHA and others) requirements applicable to daily operations.

(c) Subcontractor shall obtain and pay for all engineering, permits, licenses and certificates and perform all testing as required by Agencies having jurisdiction.

II. SCOPE OF WORK

The Scope of Work as described in the plans and specifications is further clarified or modified as follows:

Provide all labor, material, equipment, tools and services as necessary for a complete installation and proper operation of the portion of the Work as indicated on the plans and specifications, or as required, usually provided or essential for proper operation of each system, whether or not specifically mentioned or indicated in the contract documents. The work includes but is not necessarily limited to the following:

General Scope:

1. Applicable Texas Sales Tax, if any, is included.

2. Rigging and hoisting as required.

3. Traffic Control as required by your scope of work.

4. All work is to be performed in accordance with governing local, state and federal codes and agencies and maintain, as a minimum, accepted industry standards. In case of discrepancies between code requirements and work as indicated on the plans and specifications the Owner is entitled to either item, as required to provide a complete and operating system which is acceptable to the Building Department, Architect and Engineer at no additional cost.

5. All work must be coordinated with other trades and with Contractors Superintendent.

6. All debris must be removed to an area designated by Contractor. If the subcontractor fails to do so, one written warning will be issued; thereafter Contractor will immediately provide labor and backcharge the subcontractor accordingly.

7. A material delivery schedule shall be submitted to Contractor Project Manager in writing within 20 days of issuance of this subcontract for all items installed under this contract.

8. The Subcontractor is to provide complete and operating systems, the contract is based on all plans and specifications, not just the trade specific documents. Any items contained in any other drawing or specification which requires trade related work or coordination whether specifically indicated in the trade drawings or specifications, must be provided under this subcontract at no additional cost to Contractor or the Owner. In case of discrepancies between plans and specifications the Owner is entitled to either item at his discretion, as appropriate to fulfill the intent of documents and provide a complete and operating system at no additional cost.

9. All work shall be performed in accordance with Contractor's schedule and as not to delay the work of other trades. All activity progress will be monitored on a daily basis by Contractor's Superintendent and weekly by Contractor's Project Manager. Contractor reserves the right to accelerate work as required.

10. The subcontractor agrees to have a representative of his company attend weekly subcontractor meetings held by Contractor. at the site.

11. This subcontractor shall notify Contractor's site office verbally and the corporate office in writing prior to commencement of any time and material work. Such notice shall identify the scope of work, unit cost and maximum estimated cost. All time and material slips will be signed by Contractor's site superintendent within 24 hours. Work completed without the above procedure will not be reimbursed.

12. This subcontractor shall include all coring, penetrations, pipe sleeves and fire safing required to complete his work.

13. This subcontractor shall employ competent and trained personnel at all times. This subcontractor shall have a full time foreman to supervise his work force. One foreman shall be assigned throughout the course of this project and shall not be changed without consent of Contractor.

14. Emergency telephone numbers shall be furnished with a signed copy of this subcontract.

15. Operation, maintenance manuals and as built drawings must be submitted with this subcontractor's application for payment that meets or exceeds the 90% value of the contract, a minimum of three sets and one reproducible will be required. Final payment will be withheld until all of the above items have been delivered to and approved by Contractor's Project Manager.

16. All temporary closures, barricades, shoring and safety railing as needed to complete the work and make safe for other subcontractors. All of the previously mentioned items shall be maintained until all work has been completed. None of the above items will be removed unless approved by Contractor's Superintendent.

17. All material deliveries shall bear the appropriate container labeling and MSDS sheets according to OSHA regulations.

18. A cost breakdown shall be submitted to Contractor within five days for approval. Requisitions and Partial Releases signed and notarized with each progress billing will be delivered to Contractor by the 25th of each month.

19. All warranty documentation including any extended manufacturer's warranty documents will be submitted as noted in specifications with this subcontractor's application for payment that meets or exceeds 90% value of the contract, that all work executed by subcontractor will be free from defects in materials or workmanship for a period of one year from substantial completion.

20. Change orders for additional scopes of work to be submitted for approval are not to exceed 15% markup or the limit set forth in the agreement between the Contractor and the Owner. Subcontractors Change proposals must break -down proposed cost changes satisfactory to Contractor. Any Changes agreed to be completed on a Time and Material (T&M) basis is not to exceed 15% mark-up or the limit set forth in the agreement between the Contractor and the Owner. Subcontractors must submit Daily Time and Material Slips signed by the on-site superintendent as buck-up for work completed.

21. The Subcontractor shall be responsible for maintaining access to Procore and is responsible for familiarizing themselves with using the system to ensure the latest Contract Documents and Information can be reviewed on a regular basis. The updated project documents are managed and maintained in the Procore system to include but not limited to Contract Drawings, Request for Information (RFI) & Submittals all of which the Subcontract is responsible for.

Exhibit "B"
Waiver and Release Forms

B-1 – Conditional Waiver for Progress Payments (Submit with each payment application.)

B-2 – Unconditional Waiver for Progress Payments (Submit when picking up progress payment. If payment is mailed, it must be submitted before next payment application will be approved.)

B-3 – Conditional Waiver for Final Payment (Submit with final payment application.)

B-4 – Unconditional Waiver for Final Payment (Exchange for final check.)

Exhibit "B-1"
Conditional Waiver and Release on Progress Payments

STATE OF TEXAS §
§
COUNTY OF BRAZOS § S/V Contract/PO #: **SC-001**

Awesome Office Building
789 Some Street
Bryan, TX 77801

BEFORE ME, the undersigned has entered into an agreement with General Construction, Inc. ("GC") to furnish labor and/or materials and/or equipment for improvements on the property described above (the "Project"), which may be more particularly described in an attached exhibit.

On receipt by the signer of this document of a check from GC in the sum of $_____payable to Subcontractor/Seller and when the check has been properly endorsed and has been paid by the bank on which it is drawn, this document becomes effective to release any mechanic's lien right, any right arising from a payment bond that complies with a state or federal statute, any common law payment bond right, any claim for payment, and any rights under any similar ordinance, rule, or statue related to claim or payment rights for persons in the signer's position that the signer has on the property of Awesome Owner, LP located at 789 Some Street (location) to the following extent: All of the Work described in the Statement Summary below.

This release covers a progress payment for all labor, services, equipment, or materials furnished to the property or to GC as indicated in the attached statement(s) or progress payment request(s), except for unpaid retention, pending modifications and changes, or other items furnished.
Before any recipient of this document relies on this document, the recipient should verify evidence of payment to the signer.

The signer warrants that the signer has already paid or will use the funds received from this progress payment to promptly pay in full all the signer's laborers, subcontractors, materialmen, and suppliers for all work, materials, equipment, or services provided for or to the above-referenced project in regard to the attached statement(s) or progress payment request(s).

EXECUTED on this_____day of_____

By:_____Name and Title: _____

Subcontractor/Seller: **Fantastic Floors, LLC**

Address: **4321 Random Street, Bryan, TX 77807**

STATE OF_____§

§
COUNTY OF_____§

SWORN AND SUBSCRIBED TO BEFORE ME, the undersigned authority, a Notary Public, in and for said County and State, on this day,_____
of_____who personally appeared and is known to me to be the person and officer whose name is subscribed to the foregoing instrument, and swore to me that the same was the act of said company, that he executed the same as the act of such company for the purposes and consideration therein expressed, and in the capacity therein stated that all the facts stated herein are true and correct.

GIVEN UNDER MY HAND AND SEAL OF OFFICE, this_____day of_____to certify which witness my hand and seal of office.

_____My Commission Expires:_____Notary Public in and for State of Texas

Printed Name: _____

Statement Summary: All labor, materials and equipment furnished through the following date: ____ Pending Changes: None, except:_____

NOTICE: THIS DOCUMENT WAIVES RIGHTS UNCONDITIONALLY AND STATES THAT YOU HAVE BEEN PAID FOR GIVING UP THOSE RIGHTS. IT IS PROHIBITED FOR A PERSON TO REQUIRE YOU TO SIGN THIS DOCUMENT IF YOU HAVE NOT BEEN PAID THE PAYMENT AMOUNT SET FORTH BELOW. IF YOU HAVE NOT BEEN PAID, USE A CONDITIONAL RELEASE FORM.

Exhibit "B-2"
Unconditional Waiver and Release on Progress Payments

STATE OF TEXAS §
§
COUNTY OF BRAZOS § S/V Contract/PO #: **SC-001**

Awesome Office Building
789 Some Street
Bryan, TX 77801

BEFORE ME, the undersigned has entered into an agreement with General Construction, Inc. ("GC") to furnish labor and/or materials and/or equipment for improvements on the property described above (the "Project"), which may be more particularly described in an attached exhibit.

The signer of this document has been paid and has received a progress payment in the sum of $_____for all labor, services, equipment, or materials furnished to the property or to GC on the property of Awesome Owner, LP (Owner) located at 789 Some Street (location) to the following extent: All of the Work described in the Statement Summary below. The signer therefore waives and releases any mechanic's lien right, any right arising from a payment bond that complies with a state or federal statute, any common law payment bond right, any claim for payment, and any rights under any similar ordinance, rule, or statute related to claim or payment rights for persons in the signer's position that the signer has on the above-referenced project to the following extent:

This release covers a progress payment for all labor, services, equipment, or materials furnished to the property or to GC as indicated in the attached statement(s) or progress payment request(s), except for unpaid retention, pending modifications and changes, or other items furnished.

The signer warrants that the signer has already paid or will use the funds received from this progress payment to promptly pay in full all of the signer's laborers, subcontractors, materialmen, and suppliers for all work, materials, equipment, or services provided for or to the above-referenced project in regard to the attached statement(s) or progress payment request(s).

EXECUTED on this_____day of_____

By:_____Name and Title: _____

Subcontractor/Seller: **Fantastic Floors, LLC**

Address: **4321 Random Street, Bryan, TX 77807**

STATE OF_____§
§
COUNTY OF_____§

SWORN AND SUBSCRIBED TO BEFORE ME, the undersigned authority, a Notary Public, in and for said County and State, on this day,_____of _____who personally appeared and is known to me to be the person and officer whose name is subscribed to the foregoing instrument, and swore to me that the same was the act of said company, that he executed the same as the act of such company for the purposes and consideration therein expressed, and in the capacity therein stated that all the facts stated herein are true and correct.

GIVEN UNDER MY HAND AND SEAL OF OFFICE, this_____day of_____to certify which witness my hand and seal of office.

_____My Commission Expires: _____
Notary Public in and for State of Texas

Printed Name: _____

Statement Summary: All labor, materials and equipment furnished through the following date:_____ Pending Changes: None, except:_____

Exhibit "B-3"
Conditional Waiver and Release on Final Payment

STATE OF TEXAS §
§
COUNTY OF BRAZOS § S/V Contract/PO #: **SC-001**

Awesome Office Building
789 Some Street
Bryan, TX 77801

BEFORE ME, the undersigned has entered into an agreement with General Construction, Inc. ("GC") to furnish labor and/or materials and/or equipment for improvements on the property described above (the "Project"), which may be more particularly described in an attached exhibit.

On receipt by the signer of this document of a check from GC in the sum of $_____payable to Subcontractor/Seller and when the check has been properly endorsed and has been paid by the bank on which it is drawn, this document becomes effective to release any mechanic's lien right, any right arising from a payment bond that complies with a state or federal statute, any common law payment bond right, any claim for payment, and any rights under any similar ordinance, rule, or statue related to claim or payment rights for persons in the signer's position that the signer has on the property of Awesome Owner, LP (Owner) located at 789 Some Street (location) to the following extent: All of the Work performed on the Project.

This release covers the final payment to the signer for all labor, services, equipment, or materials furnished to the property or to GC.

Before any recipient of this document relies on this document, the recipient should verify evidence of payment to the signer.

The signer warrants that the signer has already paid or will use the funds received from this final payment to promptly pay in full all the signer's laborers, subcontractors, materialmen, and suppliers for all work, materials, equipment, or services provided for or to the above-referenced project up to the date of this waiver and release.

EXECUTED on this_____day of_____

By:_____Name and Title:_____

Subcontractor/Seller: **Fantastic Floors, LLC**
Address: **4321 Random Street, Bryan, TX 77807**

STATE OF_____§
§
COUNTY OF_____§

SWORN AND SUBSCRIBED TO BEFORE ME, the undersigned authority, a Notary Public, in and for said County and State, on this day,_____of _____who personally appeared and is known to me to be the person and officer whose name is subscribed to the foregoing instrument, and swore to me that the same was the act of said company, that he executed the same as the act of such company for the purposes and consideration therein expressed, and in the capacity therein stated that all the facts stated herein are true and correct.

GIVEN UNDER MY HAND AND SEAL OF OFFICE, this_____day of_____to certify which witness my hand and seal of office.

_____My Commission Expires:
Notary Public in and for State of Texas

Printed Name: _____

NOTICE: THIS DOCUMENT WAIVES RIGHTS UNCONDITIONALLY AND STATES THAT YOU HAVE BEEN PAID FOR GIVING UP THOSE RIGHTS. IT IS PROHIBITED FOR A PERSON TO REQUIRE YOU TO SIGN THIS DOCUMENT IF YOU HAVE NOT BEEN PAID THE PAYMENT AMOUNT SET FORTH BELOW. IF YOU HAVE NOT BEEN PAID, USE A CONDITIONAL RELEASE FORM.

Exhibit "B-4"
Unconditional Waiver and Release on Final Payment

STATE OF TEXAS §
§
COUNTY OF BRAZOS § S/V Contract/PO #: **SC-001**

Awesome Office Building
789 Some Street
Bryan, TX 77801

BEFORE ME, the undersigned has entered into an agreement with General Construction, Inc. ("GC") to furnish labor and/or materials and/or equipment for improvements on the property described above (the "Project"), which may be more particularly described in an attached exhibit.

The signer of this document has been paid in full for all labor, services, equipment, or materials furnished to the property or to GC on the property of Awesome Owner, LP (Owner) located at 789 Some Street (location) to the following extent: All Work performed on the Project. The signer therefore waives and releases any mechanic's lien right, any right arising from a payment bond that complies with a state or federal statute, any common law payment bond right, any claim for payment, and any rights under any similar ordinance, rule, or statute related to claim or payment rights for persons in the signer's position.

The signer warrants that the signer has already paid or will use the funds received from this final payment to promptly pay in full all of the signer's laborers, subcontractors, materialmen, and suppliers for all work, materials, equipment, or services provided for or to the above-referenced project up to the date of this waiver and release.

EXECUTED on this_____day of_____

By:_____Name and Title: _____

Subcontractor/Seller: **Fantastic Floors, LLC**
Address: **4321 Random Street, Bryan, TX 77807**

STATE OF_____§

COUNTY OF_____§

SWORN AND SUBSCRIBED TO BEFORE ME, the undersigned authority, a Notary Public, in and for said County and State, on this day,_____of _____who personally appeared and is known to me to be the person and officer whose name is subscribed to the foregoing instrument, and swore to me that the same was the act of said company, that he executed the same as the act of such company for the purposes and consideration therein expressed, and in the capacity therein stated that all the facts stated herein are true and correct.

GIVEN UNDER MY HAND AND SEAL OF OFFICE, this_____day of_____to certify which witness my hand and seal of office.

_____My Commission Expires:
Notary Public in and for State of Texas

Printed Name: _____

Exhibit "D"

Awesome Office Building
789 Some Street
Bryan, TX 77801

PROJECT DOCUMENTS

1) Agreement made on between General Construction, Inc. (Contractor) and Awesome Owner, LP

2) Drawings and Specifications as follows issued by Architect, Inc.

   a) IFC Drawings for Awesome Office Building, dated January 10, 2023.
   b) IFC Specifications for Awesome Office Building, dated January 10, 2023.
   c) Addendum 1 for Awesome Office Building, issued January 12, 2023.

Exhibit "E"
Safety Requirements and Procedures

All operations are to be conducted safely and in compliance with the Federal Occupational Safety and Health Act of 1970, and all subsequent revisions and amendments, as well as applicable state and local codes or standards.

Contractor expects the Subcontractor and its sub-subcontractors to comply with these same regulations and with the requirements of Article SIXTEEN, as well as the general requirements as outlined below:

GENERAL REQUIREMENTS:

1. Each Subcontractor working on a **Contractor's** project is contractually obligated to comply with all statutory safety requirements, the **Contractor's** Safety Program and the Owner's Safety Program, if any. These combined safety requirements constitute the minimum safety performance expected from each Subcontractor and their subcontractors.

    1) Each Subcontractor will establish a project safety program in detail, including minimum compliance standards, methods to be used to assure compliance, and shall make it available to **Contractor** for review upon request. Failure to submit the safety program within 15 days from the date of such request will be grounds to withhold payments to Subcontractors until this requirement is fulfilled. This program shall conform to applicable federal, state and local regulations, as well as Owner Safety Programs.

    Such review by **Contractor** shall not relieve a Subcontractor of responsibilities for safety nor shall such review be construed as limiting in any manner, the Subcontractor's obligation to undertake any action which may be necessary or required to establish and maintain safe working conditions at the site.

3. Each Subcontractor shall designate a competent on-site supervisor to carry out his safety program and to coordinate a safety program with **Contractor**. The name of the Subcontractor's Home Office Safety Representative shall also be submitted. Subcontractor's attendance at safety meetings is mandatory.

4. Subcontractor's supervisors unable or unwilling to assure performance in compliance with the contractual safety obligations will not be accepted as supervisors and shall, if substandard performance warrants, be removed from the project.

5. Each Subcontractor shall establish and enforce an effective disciplinary program. Subcontractors' employees who fail to comply with the job site safety rules will be removed from the job site.

6. Each Subcontractor shall maintain accurate accident and injury reports and shall furnish **Contractor** a summary of injuries and man hours expended upon request.

7. In the event of an injury to a Subcontractor employee, the Subcontractor shall immediately notify **Contractor's** Field Representative of the incident and copies of all First Reports of Injury or loss, accident investigations, etc., shall be forwarded within 48 hours to **Contractor's** Project Manager.

8. Each Subcontractor is responsible for assuring compliance of the above requirements with their sub-subcontractors.

FAILURE TO CORRECT UNSAFE CONDITIONS:

1. If the Subcontractor is notified of an unsafe condition by Contractor's Field Representative, it shall be given a reasonable amount of time to correct said condition. If the unsafe condition is not then corrected, Contractor shall have the right, but not the obligation, to correct the unsafe condition at the Subcontractor's expense. Contractor may furthermore withhold payments to Subcontractor until the condition is corrected.

2. If the unsafe condition poses an imminent danger to life and property, Subcontractor shall immediately cease operations and correct the unsafe condition before proceeding with work.

Exhibit "G"
Warranty - Guarantee

To: General Construction, Inc.
1234 Anywhere Lane
College Station, TX 77840

And: Awesome Owner, LP
789 Some Street
Bryan, TX 77801

The undersigned, being first duly sworn, says: We hereby warrant and guarantee the which we have furnished and/or installed for the Awesome Office Building for 1 year(s) from the date of Substantial Completion.

We agree to repair or replace to the satisfaction of the Architect or Owner any and all work that may be defective in workmanship or material within the period stated above, together with any other property which may be damaged or displaced by our defective work, or damaged or displaced in repairing or replacing the work.

Any repairs or replacements shall be in accordance with project plans and specifications.

In the event of our failure to comply with the above mentioned conditions within a reasonable time after being notified in writing, we hereby authorize Owner and/or Contractor to proceed to have defects repaired and made good at our expense, and we will pay the costs and charges therefore immediately upon demand.

Subcontractor/Seller: Fantastic Floors, LLC

Signed: _____

By: _____

Its:

Subscribed and sworn to before me on this_____day of

Notary Public

Printed

Name:

My Commission Expires: